GLAZING SUBCONTRACT AGREEMENT

This Glazing Subcontract Agreement (this "Subcontract") is entered into as of February 2, 2026 (the "Effective Date") by and between **Calder & Webb Builders**, a California corporation holding California Contractors State License Board License No. 1048823 (Class B), with its principal office at 4410 North Palm Avenue, Suite 210, Fresno, California 93704 ("Contractor"), and **Brightline Glazing Co.**, a California corporation holding California Contractors State License Board License No. 987214 (Class C-17), with its principal office at 2875 South Chestnut Avenue, Fresno, California 93725 ("Subcontractor").

Contractor has entered into a prime contract (the "Prime Contract") with **Fresno Community Health Partners** ("Owner") for the construction of the **Kings Canyon Medical Office Building**, located at 6120 East Kings Canyon Road, Fresno, California 93727 (the "Project"). Contractor wishes to subcontract a portion of the work under the Prime Contract to Subcontractor, and Subcontractor wishes to perform that work, on the terms stated below.

In consideration of the mutual promises in this Subcontract, Contractor and Subcontractor agree as follows.

ARTICLE 1 — DEFINITIONS AND CONTRACT DOCUMENTS

1.1 **Defined Terms.** Capitalized terms used in this Subcontract have the meanings given in this Article 1 or where first used. Terms defined in the Prime Contract and not otherwise defined here have the meanings given in the Prime Contract.

1.2 **Subcontract Documents.** The "Subcontract Documents" consist of (a) this Subcontract, including the Exhibit attached to it; (b) the Prime Contract, to the extent it applies to the Subcontract Work; (c) the drawings, specifications, addenda and project manual prepared for the Project by Halverson Rao Architects, dated November 14, 2025, and all revisions issued before the Effective Date; (d) the Project schedule issued by Contractor, as updated from time to time; and (e) all Change Orders and written modifications issued after the Effective Date.

1.3 **Flow-Down.** To the extent the Prime Contract applies to the Subcontract Work, Subcontractor assumes toward Contractor all obligations that Contractor assumes toward Owner under the Prime Contract, and Contractor has the same rights against Subcontractor that Owner has against Contractor. Where this Subcontract and the Prime Contract address the same subject differently, this Subcontract governs as between Contractor and Subcontractor.

1.4 **Order of Precedence.** If the Subcontract Documents conflict, the more stringent requirement governs. If the conflict cannot be resolved that way, Subcontractor shall promptly request a written interpretation from Contractor. Subcontractor shall not proceed with affected work until it receives that interpretation.

1.5 **Copies.** Subcontractor acknowledges that it has received, or has had a full opportunity to review, the Prime Contract and all other Subcontract Documents before signing this Subcontract.

ARTICLE 2 — SCOPE OF SUBCONTRACT WORK

2.1 **Subcontract Work.** Subcontractor shall furnish all labor, supervision, materials, equipment, tools, engineering, hoisting from its own staging areas, transportation and services needed to perform the following work in full accordance with the Subcontract Documents (the "Subcontract Work"):

(a) Section 08 44 13, Glazed Aluminum Curtain Wall, including delegated structural design, anchors, embeds furnished for installation by others, and perimeter flashing at curtain wall openings;

(b) Section 08 41 13, Aluminum-Framed Entrances and Storefronts, including entrance doors, door hardware specified in the glazing sections, and thresholds;

(c) Section 08 63 00, Metal-Framed Skylights, at the main lobby;

(d) Section 08 80 00, Glazing, for all interior and exterior glazed openings, including interior relites, sidelites and fire-rated glazing called for at corridor assemblies;

(e) Section 08 83 00, Mirrors, at all toilet rooms and clinical spaces;

(f) Section 07 92 00, Joint Sealants, limited to glazing perimeter sealants and sealants at the interface of Subcontractor's systems with adjacent construction; and

(g) Field water testing of curtain wall and storefront assemblies as required by Section 08 44 13, Part 3.

2.2 **Exclusions.** The Subcontract Work does not include (a) structural steel supports shown on the structural drawings, (b) automatic door operators and their electrical connections, (c) window treatments, or (d) final cleaning of glass after Subcontractor's initial cleaning required by Section 08 80 00.

2.3 **Submittals.** Subcontractor shall submit shop drawings, delegated design calculations stamped by an engineer licensed in California, product data and samples within twenty-one (21) days after the Effective Date, or sooner if the Project schedule requires. Subcontractor shall not fabricate any item before it receives approved submittals for that item.

2.4 **Examination of Conditions.** Before starting any portion of the Subcontract Work, Subcontractor shall examine the substrates and adjacent work. Subcontractor shall report any condition that would adversely affect its work to Contractor in writing. Starting work on a surface means Subcontractor accepts that surface.

2.5 **Permits and Laws.** Subcontractor shall obtain any permits and inspections specific to its trade. Subcontractor shall perform the Subcontract Work in compliance with all applicable laws, codes and regulations, including the California Building Standards Code and the requirements of the Department of Health Care Access and Information to the extent they apply to the Project.

ARTICLE 3 — SUBCONTRACT SUM

3.1 **Amount.** Contractor shall pay Subcontractor, for the full and complete performance of the Subcontract Work, the sum of **Three Hundred Eighty-Four Thousand Dollars ($384,000.00)** (the "Subcontract Sum"). This amount is subject to additions and deductions by Change Order under Article 9.

3.2 **Inclusions.** The Subcontract Sum includes all applicable sales and use taxes, freight, delivery, fees, bonds where required, insurance, overhead and profit.

3.3 **Schedule of Values.** The Subcontract Sum is allocated among the line items in the Exhibit — Schedule of Values. Contractor will use that schedule to evaluate payment applications. Subcontractor shall not front-load the schedule of values. Contractor may require Subcontractor to reallocate values that do not reasonably reflect the cost of the work.

ARTICLE 4 — PROGRESS PAYMENTS

4.1 **Payment Applications.** On or before the twentieth (20th) day of each month, Subcontractor shall submit an application for payment to Contractor. Each application shall cover the Subcontract Work performed through the end of that month. It shall be itemized according to the Schedule of Values and accompanied by the lien waivers required by Article 6, certified payroll records where the Project requires them, and any other supporting documentation Contractor reasonably requests.

4.2 **Pay-When-Paid.** Contractor shall pay Subcontractor each progress payment within seven (7) days after Contractor receives payment from Owner for the Subcontract Work included in that payment application. The amount paid will be the value of the Subcontract Work Contractor approved, less retention under Article 5 and less any amounts withheld under Article 7.

4.3 **Written Agreement to Payment Timing.** Subcontractor agrees in writing, by signing this Subcontract, that Contractor's receipt of payment from Owner sets the time for Contractor's payment to Subcontractor. Subcontractor further agrees that each progress payment becomes due seven (7) days after that receipt.

4.4 **Materials Stored On or Off Site.** Contractor will not pay for materials or equipment stored on the Project site or at any off-site location. Contractor will pay for materials and equipment only after they are incorporated into the Subcontract Work. Subcontractor shall not include stored materials in any payment application. Subcontractor bears the risk of loss for all its materials until they are incorporated into the Subcontract Work.

4.5 **No Acceptance.** A progress payment does not mean that Contractor or Owner has accepted any portion of the Subcontract Work. It does not waive any right Contractor has regarding defective or nonconforming work.

4.6 **Trust Funds.** Subcontractor shall use payments received under this Subcontract first to pay its own laborers, lower-tier subcontractors and suppliers for the Subcontract Work. Subcontractor shall make those payments before using the funds for any other purpose.

ARTICLE 5 — RETENTION

5.1 **Retention Amount.** Contractor will retain five percent (5%) of each progress payment otherwise due to Subcontractor ("Retention").

5.2 **Release of Retention.** Contractor shall release Retention to Subcontractor within ten (10) days after completion of all punch list items to the satisfaction of Contractor in its sole discretion. Subcontractor acknowledges that Contractor alone will decide whether the punch list items have been completed to its satisfaction. Contractor's decision on that question will be conclusive for purposes of releasing Retention.

5.3 **Punch List.** When Subcontractor believes the Subcontract Work is complete, it shall notify Contractor in writing. Contractor will then inspect the Subcontract Work and issue a punch list of items to be completed or corrected. Contractor may add items to the punch list as later inspections reveal them. Subcontractor shall begin punch list work within three (3) working days after receiving each punch list and shall pursue it diligently.

5.4 **Retention Release Documents.** Contractor's release of Retention is conditioned on Subcontractor first delivering the following:

(a) the lien waivers required by Article 6 for the Retention amount;

(b) the warranties required by Article 11;

(c) as-built drawings marked to show field changes to the Subcontract Work;

(d) operation and maintenance data for entrance hardware; and

(e) any attic stock required by the specifications.

ARTICLE 6 — LIEN WAIVERS AND RELEASES

6.1 **Conditional Waivers Before Payment.** With each application for payment, Subcontractor shall deliver to Contractor a conditional waiver and release on progress payment covering the full amount requested. Contractor is not obligated to process any progress payment until it receives that conditional waiver.

6.2 **Unconditional Waivers After Payment.** After Subcontractor receives each payment, Subcontractor shall deliver to Contractor an unconditional waiver and release covering the amount actually paid. The waiver shall be delivered no later than the date Subcontractor submits its next application for payment. Contractor may withhold any later payment until it receives every outstanding unconditional waiver.

6.3 **Lower-Tier Waivers.** Subcontractor shall obtain conditional and unconditional waivers and releases from each of its lower-tier subcontractors and material suppliers. Each waiver shall cover the amounts included in, and later paid under, each application for payment. Subcontractor shall deliver those waivers to Contractor with its own waivers. Supplier waivers are required regardless of whether the supplier has served a preliminary notice.

6.4 **Statutory Form Required.** Every waiver and release delivered under this Article 6 shall be in the form prescribed by California Civil Code Sections 8132 through 8138, as applicable. Contractor will reject any waiver that departs from the statutory form. Contractor will treat a rejected waiver as not delivered.

6.5 **Discharge of Liens and Claims.** If any stop payment notice, mechanics lien or payment bond claim is asserted because of the Subcontract Work, Subcontractor shall cause it to be released or bonded within ten (10) days after notice from Contractor. This obligation applies to any notice or claim asserted by a person claiming through Subcontractor. If Subcontractor fails to do so, Contractor may obtain a release bond or otherwise discharge the claim. Contractor may then deduct its costs, including reasonable attorneys' fees, from any amount owed to Subcontractor.

ARTICLE 7 — WITHHOLDING, BACKCHARGES AND SETOFF

7.1 **Backcharges and Setoff.** Contractor may back-charge Subcontractor for, and set off against any amount otherwise due under this Subcontract, all costs Contractor incurs because of Subcontractor's acts or omissions. These costs include the following:

(a) cleanup Subcontractor failed to perform after twenty-four (24) hours' notice;

(b) damage to the work of other trades caused by Subcontractor;

(c) costs of delay or acceleration caused by Subcontractor;

(d) supplementing Subcontractor's forces under Article 12; and

(e) amounts Owner withholds from Contractor because of the Subcontract Work.

Contractor will give Subcontractor written notice of each backcharge, with reasonable supporting detail, before or at the time the setoff is taken.

7.2 **Withholding for Defective Work.** Contractor may withhold payment from Subcontractor for any defective or nonconforming Subcontract Work. The amount withheld may equal the reasonable cost to correct that work, as Contractor estimates it. Contractor may continue to withhold until the work is corrected and accepted. If Subcontractor does not correct defective work within the time Contractor directs, Contractor may correct it and deduct the cost from amounts due.

7.3 **Other Grounds for Withholding.** Contractor may also withhold payment, in an amount reasonably sufficient to protect Contractor, for any of the following:

(a) unpaid claims by Subcontractor's laborers, lower-tier subcontractors or suppliers;

(b) failure to deliver required lien waivers, certified payroll or insurance certificates;

(c) reasonable evidence that the Subcontract Work cannot be completed for the unpaid balance of the Subcontract Sum; or

(d) any other material breach of this Subcontract.

7.4 **Release of Withheld Amounts.** Contractor will release a withheld amount with the next progress payment after the ground for withholding has been removed. Contractor may first apply the withheld amount to any costs incurred under this Article 7.

ARTICLE 8 — SCHEDULE AND COORDINATION

8.1 **Time.** Time is of the essence in this Subcontract. Subcontractor shall begin the Subcontract Work when Contractor directs and shall perform it in accordance with the Project schedule. Subcontractor shall supply sufficient labor, materials and equipment to keep pace with the schedule.

8.2 **Building Enclosure.** Subcontractor acknowledges that dry-in of the building depends on timely installation of the curtain wall and storefront systems. Subcontractor shall give enclosure activities priority as Contractor directs.

8.3 **Coordination.** Subcontractor shall coordinate its work with Contractor and other trades. This coordination includes attachment to the building structure, interfaces with air and vapor barriers, roofing, metal panels and interior finishes. Subcontractor shall attend weekly coordination meetings at the Project site.

8.4 **Delays.** If Subcontractor is delayed by a cause beyond its control and without its fault, Subcontractor may request an extension of time. Subcontractor must submit the request in writing within five (5) days after the delay begins. Subcontractor's sole remedy for delay shall be an extension of time, except to the extent Contractor recovers delay damages from Owner on Subcontractor's behalf.

8.5 **Site Rules.** Subcontractor shall comply with Contractor's site safety program, infection-control requirements for work near any occupied areas, parking and staging rules, and working hours.

ARTICLE 9 — CHANGES

9.1 **Change Orders.** Contractor may order changes in the Subcontract Work by written Change Order without invalidating this Subcontract. Subcontractor shall not perform extra or changed work without a written Change Order or written construction change directive signed by Contractor. Contractor will not pay for any extra or changed work performed without one.

9.2 **Pricing.** Subcontractor shall price each proposed change by itemizing labor, materials, equipment and lower-tier costs. Subcontractor may add a combined markup for overhead and profit of no more than ten percent (10%) on its own work and five percent (5%) on lower-tier work.

9.3 **Claims.** Subcontractor shall give Contractor written notice of any claim for additional time or money within seven (7) days after the event giving rise to the claim. If Subcontractor fails to give timely notice, it waives the claim to the extent Contractor is prejudiced by the late notice, or to the extent Contractor is unable to present the claim to Owner under the Prime Contract.

9.4 **Continued Performance.** Subcontractor shall continue diligently performing the Subcontract Work while any dispute about a change or claim is pending.

ARTICLE 10 — INSURANCE AND INDEMNITY

10.1 **Required Coverage.** Before starting work, Subcontractor shall maintain the following insurance with insurers rated A- VII or better by A.M. Best:

(a) commercial general liability insurance with limits of not less than $2,000,000 per occurrence and $4,000,000 aggregate, including completed operations coverage maintained for five (5) years after the Subcontract Work is complete;

(b) automobile liability insurance of not less than $1,000,000 combined single limit;

(c) workers' compensation insurance as required by California law, with employer's liability limits of not less than $1,000,000; and

(d) umbrella liability insurance of not less than $3,000,000.

10.2 **Additional Insureds.** The commercial general liability, automobile and umbrella policies shall name Contractor, Owner and Halverson Rao Architects as additional insureds on a primary and non-contributory basis. Each policy shall include a waiver of subrogation in their favor.

10.3 **Indemnity.** To the fullest extent permitted by law, Subcontractor shall defend, indemnify and hold harmless Contractor, Owner and their officers, employees and agents from all claims, losses, damages and expenses, including reasonable attorneys' fees, to the extent caused by the negligence, recklessness or willful misconduct of Subcontractor or anyone for whose acts Subcontractor is liable. This obligation does not extend to claims arising from the active negligence or willful misconduct of the indemnified party. It shall be interpreted to comply with California Civil Code Section 2782.05.

ARTICLE 11 — WARRANTY

11.1 **General Warranty.** Subcontractor warrants that all materials and equipment furnished under this Subcontract will be new, of good quality and free from defects. Subcontractor also warrants that the Subcontract Work will conform to the Subcontract Documents.

11.2 **Correction Period.** For one (1) year after Owner occupies the Project, Subcontractor shall correct any defective Subcontract Work promptly after receiving notice. This period may be longer if the Subcontract Documents require it. The correction obligation includes repairing any damage to other work caused by the defect or its correction.

11.3 **System Warranties.** In addition to the warranty in Section 11.2, Subcontractor shall furnish the following:

(a) a ten (10) year written warranty against water and air infiltration for the curtain wall, storefront and skylight systems;

(b) the manufacturer's insulating glass unit seal warranty of not less than ten (10) years; and

(c) the manufacturer's finish warranty on aluminum framing of not less than twenty (20) years.

ARTICLE 12 — DEFAULT AND TERMINATION

12.1 **Notice to Cure.** Subcontractor is in default if it does any of the following:

(a) fails to supply sufficient skilled workers or proper materials;

(b) fails to maintain the schedule;

(c) fails to correct defective work;

(d) fails to pay its laborers, lower-tier subcontractors or suppliers; or

(e) otherwise materially breaches this Subcontract.

If Subcontractor is in default, Contractor may give written notice. If Subcontractor fails to begin curing the default within three (3) working days after receiving notice and to complete the cure diligently, Contractor may supplement Subcontractor's forces, terminate this Subcontract, or both.

12.2 **Completion by Contractor.** If Contractor terminates for default, Contractor may take possession of Subcontractor's materials and equipment at the site and complete the Subcontract Work by any reasonable means. Subcontractor is not entitled to further payment until the work is complete. If Contractor's cost to complete exceeds the unpaid balance of the Subcontract Sum, Subcontractor shall pay the difference to Contractor.

12.3 **Termination for Convenience.** Contractor may terminate this Subcontract for convenience on written notice. In that case, Subcontractor will be paid for Subcontract Work properly performed through the termination date, plus reasonable demobilization costs. Subcontractor will not recover anticipated profit on unperformed work.

ARTICLE 13 — DISPUTE RESOLUTION AND GOVERNING LAW

13.1 **Governing Law.** The laws of the State of California govern this Subcontract, without regard to its conflict-of-laws rules.

13.2 **Negotiation.** The parties shall first attempt to resolve any dispute through good-faith negotiation between senior representatives. That negotiation shall take place within fifteen (15) days after either party gives written notice of the dispute.

13.3 **Joinder with Owner Disputes.** If a dispute involves the acts or omissions of Owner or Owner's consultants, Subcontractor agrees to be bound by the procedures and outcome of the dispute process under the Prime Contract to the same extent Contractor is bound. Contractor shall present Subcontractor's portion of the claim in good faith.

13.4 **Litigation.** Any dispute not resolved under Sections 13.2 or 13.3 shall be resolved in the Superior Court of California, County of Fresno. Each party consents to that court's jurisdiction and venue.

13.5 **Attorneys' Fees.** The prevailing party in any action to enforce this Subcontract is entitled to recover its reasonable attorneys' fees and costs.

ARTICLE 14 — GENERAL PROVISIONS

14.1 **Assignment.** Subcontractor shall not assign this Subcontract or subcontract the whole of the Subcontract Work without Contractor's prior written consent. Contractor may assign this Subcontract to Owner if the Prime Contract is terminated.

14.2 **Notices.** Notices under this Subcontract shall be in writing and delivered by hand, by recognized overnight courier, or by email with confirmation of receipt, to the addresses stated in the preamble. Notices to Contractor shall be directed to the attention of the Project Manager. Notices to Subcontractor shall be directed to the attention of its President.

14.3 **Independent Contractor.** Subcontractor is an independent contractor. Subcontractor is solely responsible for its employees, means and methods, and site safety for its own operations.

14.4 **Entire Agreement.** This Subcontract, with the Subcontract Documents, is the entire agreement between the parties regarding the Subcontract Work. It supersedes all prior proposals, negotiations and agreements. Subcontractor's proposal is not part of this Subcontract unless expressly incorporated.

14.5 **Amendment and Waiver.** This Subcontract may be amended only by a writing signed by both parties. A waiver of any breach does not waive any other breach.

14.6 **Severability.** If any provision of this Subcontract is held unenforceable, the remaining provisions remain in effect. The unenforceable provision shall be enforced to the maximum extent permitted by law.

14.7 **Counterparts.** This Subcontract may be signed in counterparts and by electronic signature. Each counterpart is an original, and all of them together are one instrument.

IN WITNESS WHEREOF, the parties have executed this Subcontract as of the Effective Date.

CONTRACTOR: Calder & Webb Builders By: _____ Name: Marcus T. Calder Title: President Date: _____

SUBCONTRACTOR: Brightline Glazing Co. By: _____ Name: Elena R. Okafor Title: President Date: _____

EXHIBIT — SCHEDULE OF VALUES

Item	Description	Specification Section	Value
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1	Mobilization, bonds and insurance	01 00 00	$18,500.00
2	Shop drawings and delegated structural design	08 44 13	$14,000.00
3	Curtain wall framing, glass and anchors — materials	08 44 13	$112,000.00
4	Curtain wall installation — labor	08 44 13	$74,500.00
5	Aluminum storefronts and entrances, including hardware	08 41 13	$58,000.00
6	Lobby skylight system	08 63 00	$30,000.00
7	Interior glazing, relites, sidelites and fire-rated glass	08 80 00	$34,000.00
8	Mirrors	08 83 00	$6,500.00
9	Glazing perimeter and interface sealants	07 92 00	$22,000.00
10	Field water testing	08 44 13	$9,500.00
11	Closeout documents, warranties and attic stock	01 77 00	$5,000.00
	Subcontract Sum		**$384,000.00**